

IN THE CIRCUIT COURT OF THE EIGHTH JUDICIAL CIRCUIT IN AND FOR ALACHUA
COUNTY, FLORIDA

CASE NUMBER: 01-2026-CA-001794 Circuit Civil Division W

CHRISTOPHER A. HANSON, individually and as attorney for himself and as next friend and
attorney for his two minor children,

Petitioners,

v.

UNIVERSITY OF FLORIDA BOARD OF TRUSTEES, and CUSTODIAN OF PUBLIC
RECORDS, UNIVERSITY OF FLORIDA,

Respondents.

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**PETITIONER'S HEARING MEMORANDUM AND STATEMENT OF RESPONDENTS'
OWN ADMISSIONS**

Petitioner Christopher A. Hanson, self-represented, submits this memorandum for the
evidentiary hearing on the Verified Petition for Writ of Mandamus set for September 2, 2026,
and states:

Introduction. Petitioner does not make the statements in this memorandum lightly, and he
understands their seriousness. He asks the Court to weigh them against the seriousness of what
the record shows. This case is about a matter of great public importance: the constitutional right
of every Floridian to inspect the records of their government and to hold public officials
accountable through them. Art. I, § 24, Fla. Const. That right has been narrowing for years, one
exemption and one defense at a time.

In the Legislature, new exemptions accumulate session by session. In the executive branch, the
Office of the Attorney General has argued, in Petitioner's parallel records case, that "[j]udicial
immunity would apply to many of the requested records." Defendants' Response, *Hanson v.*
Thirteenth Judicial Circuit, No. 25-CA-010255 (Fla. 13th Cir., filed Mar. 4, 2026), p. 5.
Immunity is a defense to damages. It has never been a defense to transparency. And in this case,
a public university that houses the nation's freedom-of-information project asks a court to hold
that a citizen may be denied even the identity of the records withheld from him.

Each of these, standing alone, might be an ordinary dispute. Together they describe a system
drifting away from the constitutional command it exists to serve. This Court cannot fix all of
that. It can decide this case, on this record, by the ordinary rules, and that is all Petitioner asks.

Purpose and incorporation. Petitioner filed on August 31, 2026 his Motion for Determination
on the Show-Cause Record, to Compel Production or, in the Alternative, Identification and In
Camera Inspection, and to Designate the September 2, 2026 Hearing. That motion sets out the
record and the authorities in full, and **Petitioner incorporates it here by reference rather than
repeating it.** This memorandum does what the motion does not. It collects what Respondents
have themselves admitted and sets those admissions beside what this University's own scholars

say about exactly this conduct. The memorandum then reviews, step by step, the questions the Court must answer to dispose of the Petition.

Nothing here seeks relief beyond the Verified Petition (and the resultant Order to Show Cause), which is the matter the August 25, 2026 order notices for hearing.

I. Respondents' admissions

Petitioner offers no contested fact in this Part. Each item is a document Respondents wrote or filed.

The evidentiary footing of these admissions. Most of what follows is not hearsay at all. Statements like "This completes the public records request" and "no statutory exemptions were cited" are the agency's operative responses under Chapter 119, offered as the acts they were; and statements Petitioner contends were untrue are offered precisely because they were made, not for their truth.

To the extent any statement is offered for its truth, each is admissible against Respondents under section 90.803(18), Florida Statutes: the University's portal responses and filed papers are its own and its authorized statements, § 90.803(18)(a), (c), and the processing-file emails are statements of University employees, from the records custodian to the Office of the General Counsel to UFIT, each concerning the handling of this request within the scope of that employment, § 90.803(18)(d). Where an exhibit contains statements within statements, every declarant in the chain is a University employee writing about the same subject, so each layer satisfies section 90.805. Petitioner's own words within these documents are offered as verbal acts, his request and his answers, not for their truth. Authenticity is not in genuine question: every processing-file page was produced by the University itself, under its own file names and metadata headers, and the complete production is of record at Ex. K (Filing 255904665). Petitioner has asked Respondents to stipulate to authenticity and admissibility, and renews that request here.

1. The University declared the request complete. On May 4, 2026 it produced 53 pages and wrote: "This completes the public records request." Ex. B, App. 15.

2. The University stated that it withheld nothing under any exemption. On May 5, 2026: "[n]o exempt information was withheld or redacted from the records responsive to your request, and consequently, no statutory exemptions were cited in UF's response." Ex. D, App. 76; Response p. 4.

3. The University told this Court the same thing under the Order to Show Cause. On July 7, 2026: "[a]ll of the records responsive to Petitioner's request were produced in their entirety." Response p. 9 (Ex. F). The affidavit filed with that response asserts no exemption for any page. Hines Aff. ¶¶ 5-8.

4. Twenty-three days later the University filed 426 pages it had never produced, and asserted three exemptions for the first time, in a footnote. Prot. Order Mot. ¶ 24, n.4 (Ex. G). Three statutes, applied to a 249-page block. **No record is identified as exempt.** Not one. The same footnote states that the 249 pages the motion labels "non-responsive public records" were "redacted pursuant to" FERPA and two Florida exemption statutes; redaction under an

exemption is how Chapter 119 treats responsive records containing exempt information, and it carries the identification duty of section 119.07(1)(e) with it.

5. The University's own file records a batch larger than everything it has described to this Court. Its processing file logs 621 pages received from UFIT on April 24, 2026. Emails_2 p. 275 (Ex. P at 11). The affidavit swears UFIT "gathered over 470 pages." Hines Aff. ¶ 6. Respondents have never said whether the 621 pages are inside that figure or outside it.

6. Counsel directed the extraction of the records responsive to Petitioner's own terms, and that file has never been produced or identified. On May 7, 2026 at 9:16 a.m., counsel asked the University's eDiscovery unit to "pull out the results" for six of Petitioner's search terms. Emails_2 p. 252 (Ex. P at 10). Fifty-four minutes later the University delivered an 88-page file of those results. *Id.*; Emails_2 p. 275 (Ex. P at 11).

Those six terms were the 13th Circuit, two of Petitioner's own case numbers, two judges presiding over his cases, and the phrase "surveillance video." The University's own keyword chart reports hits on every one of them. Emails_1 p. 222 (Ex. P at 9). The records that answer to those terms are the records still withheld. They are also, by the request's own definition, responsive: the request was framed by its terms, the University's counsel read it that way internally ("it could be that he is seeking any public record referencing one or more of these terms whether or not related to him," Emails_1 p. 190 (Ex. P at 8)), and the only narrowing Petitioner ever accepted concerned records about strangers sharing his surname. Ex. D, App. 74-75. Whether any particular record is responsive is precisely the doubt that identification and in camera inspection exist to resolve. A label applied in secret is not a determination; it is the thing to be determined.

II. What this University's own scholars say about this conduct

Petitioner raises this Part with care. Dr. Cuillier has expressed no view on the merits of this litigation, and Petitioner does not suggest otherwise. The point is narrower and, Petitioner submits, harder to answer: **the University of Florida does not merely employ people who study public records law. It houses the national project devoted to it, and that project's published positions describe the conduct this record shows.**

Dr. David Cuillier is the Director of the Joseph L. Brechner Freedom of Information Project at the University of Florida. He is also the custodian of one of the two mailboxes the University searched here.

"It shows that we have a problem in the United States. We have these laws, but there's really a lack of enforcement."

"The system's stacked against the average person. It's not fair that they have to hire an attorney and take all that time and money to just make sure the law's followed. Who can afford \$10,000, \$20,000 to do that? Not the average person."

C.J. Ciaramella, *Without More Accountability, Sunshine Laws Are Toothless*, Reason (Mar. 12, 2024).

On the gradual hollowing of records laws, he has described exemptions as "death by a thousand cuts," and has said of sunshine laws generally:

"They get passed, everyone's all ecstatic, and then they get whittled down year by year by year until they're worthless."

"Before you know it, these laws have become tools of secrecy, not transparency."

Quoted in The Spokesman-Review (Mar. 17, 2024) and republished by the Brechner Project on its own website, under the Project's own heading "Public Records Transparency Laws and Secrecy Creep." brechner.org (Mar. 20, 2024).

A word on the provenance of these quotations. They are offered as Dr. Cuillier's published public commentary, made in his capacity as the Project's Director, to show the positions this University's own institution states to the country; they are not offered as record evidence of the facts they assert. The Spokesman-Review quotations are republished on the Brechner Project's own website, a publication of the University's own unit. And Dr. Cuillier appears on Petitioner's witness list: if any quotation attributed to him is disputed, he can be asked.

Professor Jane Bambauer is the Brechner Eminent Scholar and directs the Marion B. Brechner First Amendment Project. The University's own faculty page, its own publication, states that her research "analyzes how the regulation of these new information technologies will affect free speech, privacy, law enforcement, health and safety, competitive markets, and **government accountability**." She is the custodian of the other mailbox the University searched.

The referral, and what came of it.

Petitioner adds one short sequence. Every document in it is a record the University produced in this case.

Petitioner wrote to the Brechner Project on March 12, 2026. Dr. Cuillier replied the same day, and they spoke by telephone on March 19. At 10:41 a.m. that morning he wrote:

"Sorry to bum you out. As I said, it's not our mission to connect people to journalists – it's just not what we do (nor do we do public statements, amici, etc.). Jane Bambauer, the First Amendment prof also is not tasked with connecting people to journalists – she does research. You can reach out to her if you want: janebambauer@ufl.edu"

Ex. B, App. 27. The same email referred Petitioner to outside bodies "who do connect people to journalists/legal help on these issues." Two of them were the "Florida First Amendment Foundation" and the "New First Amendment law clinic at FSU," the latter described as an institution whose "mission is to help people with these problems." *Id.*

On March 25, 2026, Petitioner asked Dr. Cuillier to confirm four points, among them that he had "no comment that you're willing to make on my situation" and "no interest in reviewing more of the case documents." At 9:45 p.m. Dr. Cuillier replied: "Yep, that is correct." Ex. B, App. 55. Petitioner filed the records request at issue in this case the next morning. Ex. A.

Dr. Cuillier owed Petitioner nothing. A scholar may decline to involve himself in a stranger's litigation, and he declined promptly and courteously. Petitioner states the sequence because three things follow from it.

It is why this case has two mailboxes. The University searched two. The second is in this record because Dr. Cuillier's March 19 email gave Petitioner Professor Bambauer's address. The scope of the University's own search traces to that referral.

It is what the University produced. On May 4, 2026 the University produced 53 pages and declared the request complete. Those 53 pages are Petitioner's own correspondence with the Brechner Project. Ex. B. The only records the University gave him were the records of his having been turned away. It produced no internal University correspondence about his request. Its own processing file now shows there were hundreds of pages of it.

And it is why this Court is the forum. Petitioner followed the referrals. He wrote to the First Amendment Foundation in March 2026, and again on July 8, 2026, asking four questions and stating that as to any question the Foundation chose not to answer, he asked only that it say so, and that he would "understand a statement of no position as just that." He followed up on July 9, 2026. He has received no answer.

He wrote to the First Amendment Clinic at Florida State University in April 2026, and on April 27, 2026 the Clinic declined to represent him. On August 26, 2026, in writing to Florida State's Office of the General Counsel, he asked that the Clinic comment on this dispute. Its August 27 reply addressed an unrelated point and did not respond to the request.

Neither institution is a party, neither owed Petitioner a duty, and Petitioner asks nothing of this Court as to either. He states it for the reason Dr. Cuillier's own published work supplies. If enforcement of the right of access depends on a requester who can afford counsel, and the institutions that exist to help are not available to him, then the courtroom is not one avenue among several. It is the only one. That is the setting in which Respondents ask this Court to hold that a requester may be denied even the identity of the records withheld from him.

When the media fails to report on insiders' actions violative of the core professional ideal, while the judicial system protects insiders, enforcement of the public records laws is the public's only hope for accountability.

Petitioner is the average person Dr. Cuillier described. He asked a public university for records about himself. He was told the request was complete and that nothing was withheld. He filed a petition. He has spent four months and his own money to find out what the University's own file says it found. He still does not know what the University holds, because the University has not told him and has not told this Court.

The alignment in this case is the point. The Joseph L. Brechner Freedom of Information Project exists because citizens need an institution that presses government to account for what it holds and does. In this litigation, the University that houses that Project is the party arguing that a requester is not entitled to learn even the identity of the records being withheld from him. The two mailboxes at issue belong to the Project's Director and to the Brechner Eminent Scholar.

The position taken on their behalf is that the public may be told a request is complete, may be told nothing was withheld, and may then be handed hundreds of previously undisclosed pages without a single record being identified. Whatever else that position is, it is not the position the Brechner Project publishes to the country.

The University is entitled to defend this case. What it is not entitled to do is hold the nation's freedom-of-information project and simultaneously take the position that a requester may be told a request is complete, told nothing was withheld, and then, twenty-three days after telling a court the same thing, be handed 426 pages under three statutes and no identification of a single record.

III. Why the Court's ruling matters beyond this file

Petitioner offers this briefly, and offers it because the Court's ruling will not be confined to one requester.

Florida's records law is being narrowed, and the narrowing compounds. In 2025 the Legislature enacted Senate Bill 1652, exempting from public records any matter stricken by a court from a pleading in a noncriminal case. Fla. SB 1652 (2025) (amending § 119.0714, Fla. Stat.). Whatever its merits, its mechanism is worth naming: material leaves the public record by operation of a ruling, and the public never learns what left. That is the erosion described in Part II, the phenomenon the Brechner Project's own website headlines as "secrecy creep": laws "whittled down year by year by year until they're worthless." Each step is defensible on its own. The accumulation is not.

Enforcement is the whole of the right. Article I, section 24 is self-executing, but a self-executing right still requires someone to execute it. If an agency may decline to say what it holds, decline to say how much it withholds, and decline to identify a single document, then the right of access exists only as far as the agency's goodwill extends. The requester cannot appeal a denial he cannot see. That is what makes identification, not production alone, the base requirement. And the right is the public's, not only that of the requester who happens to be in the room. Art. I, § 24(a), Fla. Const. A record withheld without identification is withheld from everyone, and no one outside the agency can know that it happened.

The terms at issue here are accountability terms. The six terms counsel directed be extracted include Petitioner's public-records mandamus against the Thirteenth Judicial Circuit, No. 25-CA-010255, and his Bar-related mandamus, No. 2025-CA-002469, along with two sitting judges. Whatever the University's records about those matters contain, they are records of a public institution's handling of a citizen's effort to hold public bodies accountable. Those are the records this Court is being asked to leave unidentified.

Petitioner documented this pattern publicly, and told the institutions, long before this hearing. On November 21, 2025, Petitioner published "Foxes Guarding the Courthouse and the Perfect Storm to Bring Accountability to Systemic Corruption." Three days later, on November 24, 2025, he sent it, with requests for comment, to the administration of the Thirteenth Judicial Circuit and to The Florida Bar, ACAP, and the Judicial Qualifications Commission. Ex. S.

It has been of record in his parallel case since January 13, 2026, filed within his Reply in No. 25-CA-010255. Petitioner received no substantive response from any recipient. The subject matter of that article, the Thirteenth Circuit, the judges named in Petitioner's cases, and the surveillance video, is the same subject matter as the search terms of the records request at issue here, and therefore the same subject matter as the records the University withholds. The withheld records are not records about a private grievance. They are a public university's records touching a documented, published, and delivered public-accountability effort, withheld by the institution while the requester asks what they are.

And this is a poor moment for institutions to become unverifiable. We have entered a period in which a document, a recording, or a voice can be fabricated convincingly and cheaply. Professor Bambauer's own field is what that does to public accountability. The consequence is that contemporaneous, authenticated public records are becoming the last reliable account of

what institutions actually did, rather than one account among many. Every record an agency withholds without identifying it is a piece of the verifiable record replaced by the agency's own description of it. The University's position in this case is that its description should be enough. It should not be, and it is least persuasive coming from the institution that houses the project warning the country about exactly this.

Petitioner does not ask the Court to decide any of that. He asks the Court to decide this case. He states it because the Court's order will be read by the next requester and the next agency, and because the ordinary remedy Chapter 119 provides is available here on Respondents' own filings.

IV. The three questions, in order

A. Did the return carry Respondents' burden? Once the alternative writ issued, the return became the pleading on which Respondents must justify nondisclosure. "[I]f the respondent does not meet this burden in the return, then no trial is necessary and the court can decide the issues based upon the sufficiency of the legal issues raised." *Holcomb v. Dep't of Corrections*, 609 So. 2d 751, 753 (Fla. 1st DCA 1992). The agency claiming an exemption "has the burden of proving its entitlement" to it. *Christy v. Palm Beach Cnty. Sheriff's Office*, 698 So. 2d 1365, 1367 (Fla. 4th DCA 1997). Evaluating the sufficiency of a return is the Court's own function. *Bal Harbour Village v. State ex rel. Giblin*, 299 So. 2d 611, 613, 615 (Fla. 3d DCA 1974). On the face of Respondents' filings, the return asserts no exemption at all, and the exemptions asserted later identify no record.

B. If it did not, what follows? Production. Sections 119.07(1)(d) and (1)(g) reach "the remainder" of a redacted record and "the public record or part thereof in question." Where an alternative writ is justified in part, the court conforms the writ and orders compliance. *City of Bradenton v. State ex rel. Perry*, 118 Fla. 838, 842-43, 160 So. 506 (1935).

In the alternative, and as to any record the Court is not prepared to order produced outright: identification and in camera tender. Section 119.07(1)(e) requires the basis and statutory citation for each claimed exemption; section 119.07(1)(f) requires, on request, a written statement of the reasons with particularity, and Petitioner made that request in the request itself. Emails_1 p. 1 (Ex. P at 12). Where an exemption is claimed or doubt exists, "the proper procedure is to furnish the document to the trial judge for an in camera inspection." *Walton v. Dugger*, 634 So. 2d 1059, 1061-62 (Fla. 1993). Respondents' own authority calls that "generally the only way" to test a claim of exemption. *Environmental Turf, Inc. v. Univ. of Fla. Bd. of Trustees*, 83 So. 3d 1012, 1013 (Fla. 1st DCA 2012).

C. What is decided today, and what waits? Respondents' lead authority holds that a court errs by entering final judgment "because the trial court has yet to adjudicate the issue of whether the City has complied with its obligations under the Public Records Act." *Morris v. City of Miami*, 402 So. 3d 424, 426 (Fla. 3d DCA 2024). Compliance is the threshold determination, and this hearing is where it is made. What cannot be compressed into it is a final adjudication of material no one has been permitted to examine. On August 27, 2026, in Petitioner's parallel Chapter 119 case, a Florida circuit court directed the responding party to identify each record it claims exempt and tender those records for in camera inspection, and clarified that it "will determine the legal sufficiency of Defendants' return before any final evidentiary hearing is held." Ex. N, at 4-5.

V. What Petitioner asks the Court to do at this hearing

1. Determine, on Respondents' own filings, which asserted grounds for withholding carried the burden and which did not.
2. Order production of the withheld records on every ground the return did not carry.
3. In the alternative, and as to any record not ordered produced, direct record-by-record identification and in camera tender.
4. Rule on Petitioner's pending cross-motion filed July 31, 2026 (Filing 253756192).
5. State the issues of material fact, if any, that remain for a further evidentiary hearing.

VI. A proposed use of the reserved time

Offered as a suggestion only, subject entirely to the Court's preference. The order reserves ninety minutes.

- **Fifteen minutes.** The show-cause record and Question A, on the documents. No witness is required.
- **Forty minutes.** Testimony. Respondents have advised they will present Mr. Hines. Petitioner has subpoenaed Mr. Daniel Quiros, the UFIT engineer who ran the searches described in Part I, together with Dr. Cuillier and Professor Bambauer, and will proceed with whoever appears. Petitioner has also invited voluntary testimony on the state of records compliance from the First Amendment Foundation and the First Amendment Clinic at Florida State University. Ex. T.
- **Twenty minutes.** Testimony and/or review of records located and not yet produced.
- **Fifteen minutes.** Arguments. Respondents' presentation and reply, as the Court directs.

VII. Reservation

Petitioner reserves the immediate hearing required by section 119.11(1), the written discovery served July 13, 2026, and his entitlement to fees and costs under section 119.12, Florida Statutes. This memorandum is submitted without waiver of any relief requested in the August 31, 2026 motion or in the pending cross-motion.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed with the Florida Courts E-Filing Portal on August 31, 2026, which will serve a Notice of Electronic Filing on James W. Kirkconnell, Esq., jameswk@ufl.edu, counsel for Respondents, and on Kimberly LoGiurato, klogiurato@ufl.edu, a designated e-service address for Respondents.

/s/ Christopher A. Hanson

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